

Amendment No. 1 to SB1138

Reeves
Signature of Sponsor

AMEND Senate Bill No. 1138

House Bill No. 543*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 35, Part 4, is amended by adding the following as a new section:

A city or town that has operated a sewerage system outside of the corporate boundaries of the city or town for twenty-five (25) years or more shall not cease operating the sewerage system outside the corporate boundaries so long as the sewerage system maintains sufficient capacity, as determined by a study presented to the Tennessee board of utility regulation to confirm the necessity for the closure.

SECTION 2. Tennessee Code Annotated, Title 7, Chapter 82, Part 3, is amended by adding the following as a new section:

A utility district that has operated a sewerage system in the unincorporated territory of a county for twenty-five (25) years or more shall not cease operating the sewerage system in the unincorporated territory so long as the sewerage system maintains sufficient capacity, as determined by a study presented to the Tennessee board of utility regulation to confirm the necessity for the closure.

SECTION 3. Tennessee Code Annotated, Title 68, Chapter 221, Part 2, is amended by adding the following as a new section:

A municipality that has operated a sewage treatment works outside of the corporate boundaries of the city or town for twenty-five (25) years or more shall not cease operating the sewage treatment works outside the corporate boundaries so long as the sewage treatment works maintains sufficient capacity, as determined by a study

presented to the Tennessee board of utility regulation to confirm the necessity for the closure.

SECTION 4. Tennessee Code Annotated, Title 68, Chapter 221, Part 1, is amended by adding the following as a new section:

(a) As used in this section, "sewage system operator" means an individual, company, city, town, county, municipality, utility district, or other entity that operates a sewerage system, including a public sewerage system.

(b) A sewage system operator shall provide connection to the operator's sewerage system and service for a landowner that:

(1) Has an existing gravity sewer line located on the landowner's property; and

(2) Requests such connection and service.

(c) Notwithstanding § 7-82-702(b)(2), a landowner that has reason to believe that a sewage system operator has violated subsection (b) is not required to first appeal or make a complaint to the sewerage system's utility board, and may submit a complaint to the Tennessee board of utility regulation for resolution in accordance with § 7-82-702.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.